THE SASHASTRA SEEMA BAL ACT, 2007

ARRANGEMENT OF SECTIONS

CHAPTER 1

PRELIMINARY

SECTIONS

1. Short title and commencement.
2. Definitions.
3. Persons subject to this Act.

CHAPTER II

CONSTITUTION OF THE FORCE AND CONDITIONS OF SERVICE OF THE MEMBERS OF THE FORCE

4. Constitution of the Force.
5. Control, direction, etc.
6. Enrolment.
7. Liability for service outside India.
8. Resignation and withdrawal from the post.
9. Tenure of service under the Act.
10. Termination of service by Central Government.
11. Dismissal, removal or reduction in rank by the Director-General and by other officers.
12. Certificate of termination of service.
13. Restrictions respecting right to form association, freedom of speech, etc.
14. Redressal of grievances of persons other than officers.
15. Redressal of grievances of officers.

IndiaCode

CHAPTER III

OFFENCES

16. Offences in relation to enemy and punishable with death.
17. Offences in relation to the enemy and not punishable with death.
18. Offences punishable more severely on active duty than at other times.
19. Mutiny.
20. Desertion and aiding desertion.
21. Absence without leave.
22. Striking or threatening superior officer.
23. Disobedience to superior officer.
24. Insubordination and obstruction.
25. False information on enrolment.
26. Unbecoming conduct.
27. Certain forms of disgraceful conduct.
28. Ill-treating a subordinate.
29. Intoxication.
30. Permitting escape of person in custody.
31. Irregularity in connection with arrest or confinement.
32. Escape from custody.
33. Offences in respect of property.
34. Extortion and exaction.
35. Making away with equipment.
36. Injury to property, etc.
37. False accusations.
38. Falsifying official documents and false declarations.

SECTIONS

39. Signing in blank and failure to report.
40. Offences relating to Force Court.
41. False evidence.
42. Unlawful detention of pay.
43. Violation of good order and discipline.
44. Miscellaneous offences.
45. Attempt.
46. Abetment of offences that have been committed.
47. Abetment of offences punishable with death and not committed.
48. Abetment of offences punishable with imprisonment and not committed.
49. Civil offences.
50. Civil offences not triable by a Force Court.

CHAPTER IV

PUNISHMENT

51. Punishment by Force Courts.
52. Alternative punishments by Force Courts.
53. Combination of punishments.
54. Retention in the Force of a person convicted on active duty.
55. Punishments otherwise than by Force Courts.
56. Minor punishments.
57. Limit of punishments under section 56.
58. Punishment of persons of or below the rank of Commandant by Inspector-General and others.
59. Cancellation, variation or remittance of sentence.
60. Collective fines.

IndiaCode

CHAPTER V

DEDUCTIONS FROM PAY AND ALLOWANCES

61. Deductions from pay and allowances of persons subject to this Act.
62. Pay and allowances during trial.
63. Limit of certain deductions.
64. Deduction from public money due to a person.
65. Pay and allowances of prisoner of war during inquiry into his conduct.
66. Remission of deductions.
67. Provision for dependants of prisoner of war from his remitted deductions and pay and allowances.
68. Period during which a person is deemed to be a prisoner of war.

CHAPTER VI

ARREST AND PROCEEDINGS BEFORE TRIAL

69. Custody of offenders.
70. Duty of commanding officer in regard to detention.
71. Interval between committal and trial.
72. Arrest by civil authorities.
73. Capture of deserters.
74. Inquiry into absence without leave.
75. Force Police Officers.

CHAPTER VII

FORCE COURTS

SECTIONS

76. Kinds of Force Courts.
77. Power to convene a General Force Court.
78. Power to convene a Petty Force Court.
79. Warrants issued under sections 77 and 78.
80. Composition of a General Force Court.
81. Composition of a Petty Force Court.
82. Summary Force Court.
83. Dissolution of a Force Court.
84. Powers of a General Force Court.
85. Powers of a Petty Force Court.
86. Powers of a Summary Force Court.
87. Prohibition of second trial.
88. Period of limitation for trial.
89. Trial, etc., of offender who ceases to be subject to this Act.
90. Application of Act during term of sentence.
91. Place of trial, etc.
92. Choice between criminal court and Force Court.
93. Power of criminal court to require delivery of offender.

IndiaCode

CHAPTER VIII

PROCEDUREOF FORCE COURTS

94. Presiding officer.
95. Judge Attorneys.
96. Objections.
97. Oath of members, Judge Attorneys and witnesses.
98. Voting by members.
99. General rule as to evidence.
100. Judicial notice.
101. Summoning of witnesses.
102. Documents exempted from production.
103. Commission for examination of witnesses.
104. Examination of a witness on commission.
105. Conviction for offences not charged.
106. Presumption as to signatures.
107. Enrolment paper.
108. Presumption as to certain documents.
109. Reference by accused to Government officer.
110. Evidence of previous convictions and general character.
111. Lunacy of accused.
112. Subsequent fitness of lunatic accused for trial.
113. Transmission to Central Government of order under section 112.
114. Release of lunatic accused.
115. Delivery of lunatic accused to relatives.
116. Order for custody and disposal of property pending trial.
117. Order for disposal of property regarding which offence is committed.
118. Powers of Force Court in relation to proceedings under this Act.
119. Tender of pardon to accomplices.
120. Trial of person not complying with conditions of pardon.

CHAPTER IX

CONFIRMATION AND REVISION OF PROCEEDINGS

SECTIONS

121. Finding and sentence not valid unless confirmed.
122. Power to confirm finding and sentence of General Force Court.
123. Power to confirm finding and sentence of Petty Force Court.
124. Limitation of powers of confirming authority.
125. Power of confirming authority to mitigate, remit or commute sentences.
126. Confirming of findings and sentences on board a ship.
127. Revision of finding or sentence.
128. Finding and sentence of a Summary Force Court.
129. Transmission of proceedings of Summary Force Court.
130. Alteration of finding or sentence in certain cases.
131. Petition against order, finding or sentence of Force Court.
132. Annulment of proceedings.

CHAPTER X

EXECUTION OF SENTENCES, PARDONS, REMISSIONS, ETC.

133. Execution of sentence of death.
134. Commencement of sentence of imprisonment.
135. Execution of sentence of imprisonment.
136. Temporary custody of convict.
137. Execution of sentence of imprisonment in special cases.
138. Conveyance of prisoner from place to place.
139. Communication of certain orders to prison officers.
140. Recovery of fine.
141. Informality or error in order or warrant.
142. Pardon and remission.
143. Cancellation of conditional pardons, release on parole or remission.
144. Suspension of sentence of imprisonment.
145. Orders pending suspension of sentence.
146. Release on suspension of sentence.
147. Computation of period of sentence.
148. Order after suspension of sentence.
149. Reconsideration of case after suspension of sentence.
150. Fresh sentence after suspension.
151. Scope of power of suspension of sentence.
152. Effect of suspension and remission of sentence on dismissal.

IndiaCode

CHAPTER XI

MISCELLANEOUS

153. Powers and duties conferrable and imposable on members of the Force.
154. Protection for acts of members of the Force.
155. Power to make rules.
156. Provisions as to existing Sashastra Seema Bal.

THE SASHASTRA SEEMA BAL ACT, 2007

ACT NO. 53 OF 2007

[20*th December,* 2007.]

An Act to provide for the constitution and regulation of an armed force of the Union for ensuring the security of the borders of India and for matters connected therewith.

BE it enacted by Parliament in the Fifty-eighth Year of the Republic of India as follows:–

CHAPTERI

PRELIMINARY

1. Short title and commencement.–(*1*) This Act may be called the Sashastra Seema Bal Act, 2007.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification, in the Official Gazette, appoint.

2. Definitions.–(*1*) In this Act, unless the context otherwise requires,–

(*a*) "active duty", in relation to a person subject to this Act, means any duty as a member of the Force during the period in which such person is attached to, or forms part of, a unit of the Force–

(*i*) which is engaged in operations against any enemy, or

(*ii*) which is operating at a picket or engaged on patrol or other guard duty along the borders of India, and includes duty by such person during any period declared by the Central Government by order as a period of active duty with reference to any area in which any person or class of persons subject to this Act may be serving;

(*b*) "battalion" means a unit of the Force constituted as a battalion by the Central Government;

(*c*) "civil offence" means an offence which is triable by a criminal court;

(*d*) "civil prison" means any jail or place used for the detention of any criminal prisoner under the Prisons Act, 1894 (9of 1894), or under any other law for the time being in force;

(*e*) "commanding officer" means a Commandant or any officer for the time being in command of the unit or any separate portion of the Force to which such person belongs or is attached to and discharging his functions under this Act or the rules made thereunder;

(*f*) "criminal court" means a court of ordinary criminal justice in any part of India constituted under the Code of Criminal Procedure, 1973 (2 of 1974);

(*g*) "Deputy Inspector-General" and "Additional Deputy Inspector-General" mean respectively a Deputy Inspector-General and an Additional Deputy Inspector-General of the Force appointed under section 5;

(*h*) "Director-General" and "Additional Director-General" mean respectively the Director-General and an Additional Director-General of the Force appointed under section 5;

(*i*) "enemy" includes all mutineers, armed rebels, armed rioters, pirates, terrorists and any person in arms against whom it is the duty of any person subject to this Act to take action;

(*j*) "enrolled person" means an under-officer or other person enrolled under this Act;

(*k*) "Force" means the Sashastra Seema Bal;

(*l*) "Force Court" means a Court referred to in section76;

(*m*) "Force custody" means the arrest or confinement of a member of the Force under section 69;

(*n*) "Inspector-General" means the Inspector-General of the Force appointed under section 5;

(*o*) "Judge Attorney-General", "Additional Judge Attorney-General", "Deputy Judge Attorney-General" and "Judge Attorney" mean respectively the Judge Attorney-General, an Additional Judge Attorney-General, a Deputy Judge Attorney-General and a Judge Attorney of the Force appointed under sub-section (*2*) of section 95;

---

1. 1st August, 2009, *vide* notification No. S.O. 1871(E), dated 31st July, 2009, *see* Gazette of India, Extraordinary, Part II, Sec. 3(ii).

(*p*) "member of the Force" means an officer, a subordinate officer, anunder-officer or other enrolled person;

(*q*) "notification" means a notification published in the Official Gazette;

(*r*) "offence" means any act or omission punishable under this Act and includes a civil offence;

(*s*) "officer" means a person appointed or in pay as an officer of the Force, but does not include a subordinate officer or an under-officer;

(*t*) "prescribed" means prescribed by rules made under this Act;

(*u*) "rule" means a rule made under this Act;

(*v*) "subordinate officer" means a person appointed or in pay as a Subedar Major or Inspector or Sub-Inspector and Assistant Sub-Inspector of the Force;

(*w*) "superior officer", when used in relation to a person subject to this Act, means–

(*i*) any member of the Force to whose command such person is for the time being subject in accordance with the rules;

(*ii*) any officer of a higher rank or class or of a higher grade in the same class, and includes, when such person is not an officer, a subordinate officer or an under-officer of higher rank, class or grade;

(*x*) "under-officer" means a Head Constable of the Force;

(y) "unit" includes–

(*i*) any body of officers and other members of the Force for which a separate authorised establishment exists;

(*ii*) any separate body of persons subject to this Act employed on any service and not attached to a unit as aforesaid;

(*iii*) any other separate body of persons composed wholly or partly of persons subject to this Act and specified as a unit by the Central Government.

(*2*) All words and expressions used and not defined in this Act but defined in the Indian Penal Code (45 of 1860), the Army Act, 1950 (46 of 1950) or the National Security Guard Act, 1986 (47 of 1986), shall have the same meanings respectively assigned to them in that Code or those Acts.

(*3*) In this Act, references to any law not in force in the State of Jammu and Kashmir* shall be construed as references to the corresponding law in force in that State.

3. Persons subject to this Act.–(*1*) The following persons appointed (whether on deputation or in any other manner) in the Force shall be subject to this Act, wherever they may be, namely:–

(*a*) officers and subordinate officer; and

(*b*) under-officers and other persons enrolled under this Act.

(*2*) Every person subject to this Act shall remain so subject until repatriated, retired, released, discharged, removed or dismissed from the Force in accordance with the provisions of this Act and the rules.

CHAPTER II

CONSTITUTION OF THE FORCE AND CONDITIONS OF SERVICE OF THE MEMBERS OF THE FORCE

4. Constitution of the Force.–(*1*) There shall be an armed force of the Union called the Sashastra Seema Bal for ensuring the security of the borders of India and performing such other duties as may be entrusted to it by the Central Government.

*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

(*2*) Subject to the provisions of this Act, the Force shall be constituted in such manner as may be prescribed and the conditions of service of the members of the Force shall be such as may be prescribed.

5. Control, direction, etc.–(*1*) The general superintendence, direction and control of the Force shall vest in, and be exercised by, the Central Government and subject thereto and to the provisions of this Act and the rules made in this behalf, the command and supervision of the Force shall vest in an officer to be appointed by the Central Government as the Director-General of the Force.

(*2*) The Director-General shall, in the discharge of his duties under this Act, be assisted by such number of Additional Directors-General, Inspectors-General, Deputy Inspectors-General, Additional Deputy Inspectors-General, Commandants and other officers, as may be appointed by the Central Government.

6. Enrolment.–The persons to be enrolled to the Force, the mode of enrolment and the procedure for enrolment shall be such as may be prescribed.

7. Liability for service outside India.–Every member of the Force shall be liable to serve in any part of India as well as outside India.

8. Resignation and withdrawal from the post.–No member of the Force shall be at liberty,–

(*a*) to resign his appointment during the term of his engagement; or

(*b*) to withdraw himself from all or any of the duties of his appointment, except with the previous permission in writing of the prescribed authority.

9. Tenure of service under the Act.–Every person subject to this Act shall hold office during the pleasure of the President.

10. Termination of service by Central Government.–Subject to the provisions of this Act and the rules, the Central Government may dismiss or remove from the service any person subject to this Act.

11. Dismissal, removal or reduction in rank by the Director-General and by other officers.–(*1*) The Director-General, or any Additional Director-General or Inspector-General may dismiss or remove from the service or reduce to a lower grade or rank any person subject to this Act other than an officer.

(*2*) An officer not below the rank of Deputy Inspector-General or any prescribed officer may dismiss or remove from the service any person under his command other than an officer or a subordinate officer of such rank as may be prescribed.

(*3*) Any such officer as is mentioned in sub-section (*2*) may reduce to a lower grade or rank any person under his command except an officer or a subordinate officer.

(*4*) The exercise of any power under this section shall be subject to the provisions of this Act and the rules.

12. Certificate of termination of service.–A subordinate officer, or an under-officer or other enrolled person who is retired, discharged, released, removed or dismissed from the service shall be furnished by the officer, to whose command he is subject, with a certificate in Hindi or English language setting forth–

(*a*) the authority terminating his service;

(*b*) the cause for such termination; and

(*c*) the full period of his service in the Force.

13. Restrictions respecting right to form association, freedom of speech, etc.–(*1*) No person subject to this Act shall, without the previous sanction in writing of the Central Government or of the prescribed authority,–

(*a*) be a member of, or be associated in any way with, any trade union, labour union, political association, or with any class of trade unions, labour unions or political associations; or

(*b*) be a member of, or be associated in any way with, any society, institution, association or organisation which is not recognised as part of the Force or is not of a purely social, recreational or

IndiaCode

religious nature; or

(*c*) communicate with the press or publish or cause to be published any book, letter or other document except where such communication or publication is in the *bona fide* discharge of his duties or is of a purely literary, artistic or scientific character or is of a prescribed nature.

Explanation.–If any question arises as to whether any society, institution, association or organisation is of a purely social, recreational or religious nature under clause (*b*) of this sub-section, the decision of the Central Government thereon shall be final.

(*2*) No person subject to this Act shall participate in, or address, any meeting or take part in any demonstration organised by any body of persons for any political purposes or for such other purposes as may be prescribed.

14. Redressal of grievances of persons other than officers.–(*1*) Any person subject to this Act other than an officer who deems himself wronged by any superior or other officer may complain to the officer under whose command he is serving.

(*2*) When the officer complained against is the officer to whom any complaint should, under sub-section (*1*), be preferred, the aggrieved person may complain to such officer's next superior officer.

(*3*) Every officer receiving any such complaint shall make as complete an investigation into it as may be possible for giving full redress to the complainant, or when necessary, refer the complaint to a superior authority.

(*4*)The Director-General may revise any decision made under any of the foregoing sub-sections, but, subject thereto, such decision shall be final.

15. Redressal of grievances of officers.–Any officer who deems himself wronged by his commanding officer or any other superior officer and who, on due application made to his commanding officer or such other superior officer, does not receive the redress to which he considers himself entitled, may complain to the Director-General or the Central Government through proper channel.

CHAPTER III

OFFENCES

16. Offences in relation to enemy and punishable with death.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) shamefully abandons or delivers up any post, place or guard, committed to his charge or which it is his duty to defend; or

(*b*) intentionally uses any means to compel or induce any person subject to this Act or to any other law relating to military, naval, air force or any other armed force of the Union to abstain from acting against the enemy or to discourage such person from acting against the enemy; or

(*c*) in the presence of the enemy, shamefully casts away his arms, ammunition, tools or equipment or misbehaves in such manner as to show cowardice; or

(*d*) treacherously holds correspondence with, or communicates intelligence to, the enemy, terrorist or any person in arms against the Union; or

(*e*) directly or indirectly assists the enemy or terrorist with money, arms, ammunition, stores or supplies or in any other manner whatsoever; or

(*f*) in time of active operation against the enemy or terrorist, intentionally occasions a false alarm in action, camp, quarters, or spreads or causes to be spread reports calculated to create alarm or despondency; or

(*g*) in time of action leaves his commanding officer or other superior officer or his post, guard, picket, patrol or party without being regularly relieved or without leave; or

(*h*) having been captured by the enemy or made a prisoner of war, voluntarily serves with or aids the enemy; or

(*i*) knowingly harbours or protects an enemy, not being a prisoner; or

(*j*) being a sentry in time of active operation against the enemy or alarm, sleeps upon his post or is intoxicated; or

(*k*) knowingly does any act calculated to imperil the success of the Force or the military, naval or air force of India or any forces co-operating therewith or any part of such forces,

shall, on conviction by a Force Court, be liable to suffer death or such less punishment as is in this Act mentioned.

17. Offences in relation to the enemy and not punishable with death.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) is taken prisoner or captured by the enemy, by want of due precaution or through disobedience of order, or willful neglect of duty, or having been taken prisoner or so captured fails to rejoin his service when able to do so; or

(*b*) without due authority holds correspondence with, or communicates intelligence to, the enemy or any person in league with the enemy or having come by the knowledge of any such correspondence or communication, wilfully omits to disclose it immediately to his commandant or other superior officer,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to fourteen years or such less punishment as is in this Act mentioned.

18. Offences punishable more severely on active duty than at other times.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) forces a safeguard, or forces or uses criminal force to a sentry; or

(*b*) breaks into any house or other place in search of plunder; or

(*c*) being a sentry, sleeps upon his post or is intoxicated; or

(*d*) without orders from his superior officer leaves his guard, picket, patrol or post; or

(*e*) intentionally or through neglect occasions a false alarm in camp or quarters, or spreads or causes to be spread reports calculated to create unnecessary alarm or despondency; or

(*f*) makes known the parole, watchword or countersign to any person not entitled to receive it; or knowingly gives a parole, watchword or a countersign different from what he received,

shall, on conviction by a Force Court,–

(*i*) if he commits any such offence when on active duty, be liable to suffer imprisonment for a term which may extend to fourteen years or such less punishment as is in this Act mentioned; and

(*ii*) if he commits any such offence when not on active duty, be liable to suffer imprisonment for a term which may extend to seven years or such less punishment as is in this Act mentioned.

19. Mutiny.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) begins, incites, causes or conspires with any other person to cause any mutiny in the Force or in the military, naval or air force of India or any forces co-operating therewith; or

(*b*) joins in any such mutiny; or

(*c*) being present at any such mutiny, does not use his utmost endeavours to suppress the same; or

(*d*) knowing or having reason to believe in the existence of any such mutiny, or of any intention to mutiny or of any such conspiracy, does not, without delay, give information thereof to his commanding officer or other superior officer; or

(*e*) endeavours to seduce any person in the Force or in the military, naval or air force of India or any forces co-operating therewith from his duty or allegiance to the Union,

shall, on conviction by a Force Court, be liable to suffer death or such less punishment as is in this Act mentioned.

IndiaCode

20. Desertion and aiding desertion.–(*1*)Any person subject to this Act who deserts or attempts to desert the service shall, on conviction by a Force Court,–

(*a*) if he commits the offence when on active duty or when under orders for active duty, be liable to suffer death or such less punishment as is in this Act mentioned; and

(*b*) if he commits the offence under any other circumstances, be liable to suffer imprisonment for a term which may extend to seven years or such less punishment as is in this Act mentioned.

(*2*) Any person subject to this Act who knowingly harbours any such deserter shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to seven years or such less punishment as is in this Act mentioned.

(*3*) Any person subject to this Act who, being cognizant of any desertion or attempt at desertion of a person subject to this Act, does not forthwith give notice to his own or some other superior officer, or take any steps in his power to cause such person to be apprehended, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to two years or such less punishment as is in this Act mentioned.

(*4*) For the purposes of this Act, a person deserts,–

(*a*) if he absents from his unit or the place of duty at any time with the intention of not reporting back to such unit or place, or who, at any time and under any circumstances when absent from his unit or place of duty, does any act which shows that he has an intention of not reporting to such unit or place of duty;

(*b*) if he absents himself without leave with intent to avoid any active duty.

21. Absence without leave.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) absents himself without leave; or

(*b*) without sufficient cause overstays leave granted to him; or

(*c*) being on leave of absence and having received information from the appropriate authority that any battalion or part thereof or any other unit of the Force, to which he belongs, has been ordered on active duty, fails, without sufficient cause, to rejoin without delay; or

(*d*) without sufficient cause fails to appear at the time fixed at the parade or place appointed for exercise or duty; or

(*e*) when on parade, or on the line of march, without sufficient cause or without leave from his superior officer, quits the parade or line of march; or

(*f*) when in camp or elsewhere, is found beyond any limits fixed or in any place prohibited, by any general, local or other order, without a pass or written leave from his superior officer; or

(*g*) without leave from his superior officer or without due cause, absents himself from any school or training institution when duly ordered to attend there, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to three years or such less punishment as is in this Act mentioned.

22. Striking or threatening superior officer.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) uses criminal force to or assaults his superior officer; or

(*b*) uses threatening language to such officer; or

(*c*) uses insubordinate language to such officer,

shall, on conviction by a Force Court,–

(*i*) if such officer is at the time in the execution of his office or, if the offence is committed on active duty, be liable to suffer imprisonment for a term which may extend to fourteen years or such less punishment as is in this Act mentioned; and

IndiaCode

(*ii*) in other cases, be liable to suffer imprisonment for a term which may extend to ten years or such less punishment as is in this Act mentioned:

Provided that in the case of an offence specified in clause (*c*), the imprisonment shall not exceed five years.

23. Disobedience to superior officer.–(*1*) Any person subject to this Act who disobeys in such manner as to show a wilful defiance of authority any lawful command given personally by his superior officer in the execution of his office whether the same is given orally, or in writing or by signal or otherwise, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to fourteen years or such less punishment as is in this Act mentioned.

(*2*) Any person subject to this Act who disobeys any lawful command given by his superior officer shall, on conviction by a Force Court,–

(*a*) if he commits such offence when on active duty, be liable to suffer imprisonment for a term which may extend to fourteen years or such less punishment as is in this Act mentioned; and

(*b*) if he commits such offence when not on active duty, be liable to suffer imprisonment for a term which may extend to five years or such less punishment as is in this Act mentioned.

24. Insubordination and obstruction.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) being concerned in any quarrel, affray or disorder, refuses to obey any officer, though of inferior rank, who orders him into arrest, or uses criminal force to, or assaults, any such officer; or

(*b*) uses criminal force to, or assaults any person, whether subject to this Act or not, in whose custody he is lawfully placed, and whether he is or is not his superior officer; or

(*c*) resists an escort whose duty it is to apprehend him or to have him in charge; or

(*d*) breaks out of barracks, camp or quarters; or

(*e*) neglects to obey any general, local or other order; or

(*f*) impedes the Force Police referred to in section 75 or any person lawfully acting on his behalf, or when called upon, refuses to assist in the execution of his duty a Force Police or any person lawfully acting on his behalf,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend, in the case of the offences specified in clauses (*d*) or (*e*), to two years, and in the case of the offences specified in the other clauses, to ten years, or in either case such less punishment as is in this Act mentioned.

25. False information on enrolment.–Any person having become subject to this Act who is discovered to have knowingly given at the time of enrolment false information to any question set forth in the prescribed form of enrolment which has been put to him by the enrolling officer before whom he appears for the purpose of being enrolled, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to five years or such less punishment as is in this Act mentioned.

26. Unbecoming conduct.–Any officer or subordinate officer who behaves in a manner unbecoming of his position and the character expected of him shall, on conviction by a Force Court, be liable to be dismissed or to suffer such less punishment as is in this Act mentioned.

27. Certain forms of disgraceful conduct.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) is guilty of any disgraceful conduct of a cruel, indecent or unnatural kind; or

(*b*) maligns, or feigns, or produces disease or infirmity in himself or intentionally delays his cure or aggravates his disease or infirmity; or

(*c*) with intent to render himself or any other person unfit for service, voluntarily causes hurt to himself or that person,

IndiaCode

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to seven years or such less punishment as is in this Act mentioned.

28. Ill-treating a subordinate.–Any officer, subordinate officer or under-officer, who uses criminal force to or otherwise ill-treats any person subject to this Act, being his subordinate in rank or position, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to seven years or such less punishment as is in this Act mentioned.

29. Intoxication.–(*1*) Any person subject to this Act who is found ina state of intoxication, whether on duty or not, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to six months or such less punishment as is in this Act mentioned.

(*2*) For the purposes of sub-section (*1*), a person shall be deemed to be in a state of intoxication if, owing to the influence of alcohol or any drug whether alone, or any combination with any other substance, he is unfit to be entrusted with his duty or with any duty which he may be called upon to perform or, behaves in a disorderly manner or in a manner likely to bring discredit to the Force.

30. Permitting escape of person in custody.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) when in command of a guard, picket, patrol, detachment or post, releases without proper authority, whether wilfully or without reasonable excuse, any person committed to his charge, or refuse to receive any prisoner or person so committed; or

(*b*) wilfully or without reasonable excuse allow to escape any person who is committed to his charge, or whom it is his duty to keep or guard,

shall, on conviction by a Force Court, be liable, if he has acted wilfully, to suffer imprisonment for a term which may extend to ten years or such less punishment as is in this Act mentioned, and if he has not acted wilfully, to suffer imprisonment for a term which may extend to two years or such less punishment as is in this Act mentioned.

31. Irregularity in connection with arrest or confinement.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) unnecessarily detains a person in arrest or confinement without bringing him to trial, or fails to bring his case before the proper authority for investigation; or

(*b*) having committed a person to Force custody fails without reasonable cause to deliver at the time of such committal, or as soon as practicable, and in any case within forty-eight hours thereafter, to the officer or other person into whose custody the person arrested is commited, an account in writing signed by himself of the offence with which the person so committed is charged,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to one year or such less punishment as is in this Act mentioned.

32. Escape from custody.–Any person subject to this Act, who, being in lawful custody, escapes or attempts to escape, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to three years or such less punishment as is in this Act mentioned.

33. Offences in respect of property.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) commits theft of any property belonging to the Government, or to any Force mess, band or institution, or to any person subject to this Act; or

(*b*) dishonestly misappropriates or converts to his own use any such property; or

(*c*) commits criminal breach of trust in respect of any such property; or

(*d*) dishonestly receives or retains any such property in respect of which any of the offences under clauses (*a*), (*b*) and (*c*) has been committed, knowing or having reasons to believe the commission of such offences; or

(*e*) wilfully destroys or injures any property of the Government entrusted to him; or

(*f*) does any other thing with intent to defraud, or to cause wrongful gain to one person or wrongful loss to another person,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to ten years or such less punishment as is in this Act mentioned.

34. Extortion and exaction.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) commits extortion; or

(*b*) without proper authority exacts from any person money, provisions or service,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to ten years or such less punishment as is in this Act mentioned.

35. Making away with equipment.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) makes away with, or is concerned in making away with, any arms, ammunition, equipment, instruments, tools, clothing or any other thing being the property of the Government issued to him for his use or entrusted to him; or

(*b*) loses by neglect anything mentioned in clause (*a*); or

(*c*) sells, pawns, destroys or defaces any medal or decoration granted to him,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend, in the case of the offences specified in clause (*a*), to ten years, and in the case of the offences, specified in the other clauses, to five years, or in either case such less punishment as is in this Act mentioned.

36. Injury to property, etc.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) destroys or injures any property mentioned in clause (*a*) of section35,or any property belonging to any Force mess, band or institution, or to any person subject to this Act; or

(*b*) commits any act which causes damage to, or destruction of, any property of the Government by fire; or

(*c*) kills, injures, makes away with, ill-treats or loses, any animal entrusted to him,

shall, on conviction by a Force Court, be liable, if he has acted wilfully, to suffer imprisonment for a term which may extend to tenyears or such less punishment as is in this Act mentioned; and if he has acted without reasonable excuse, to suffer imprisonment for a term which may extend to five years or such less punishment as is in this Act mentioned.

37. False accusations.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) makes a false accusation against any person subject to this Act, knowing or having reason to believe such accusation to be false; or

(*b*) in making a complaint against any person subject to this Act makes any statement affecting the character of such person, knowing or having reason to believe such statement to be false, or knowingly and wilfully suppresses any material facts,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to three years or such less punishment as is in this Act mentioned.

38. Falsifying official documents and false declarations.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) in any report, return, list, certificate, book or other document made or signed by him, or of the contents of which it is his duty to ascertain the accuracy, knowingly makes, or is privy to the making of, any false or fraudulent statement; or

IndiaCode

(*b*) in any document of the description mentioned in clause (*a*)knowingly makes, or is privy to the making of, any omission, with intent to defraud; or

(*c*) knowingly and with intent to injure any person, or knowingly and with intent to defraud, suppresses, defaces, alters or makes away with any document which it is his duty to preserve or produce; or

(*d*) where it is his official duty to make a declaration respecting any matter knowingly makes a false declaration; or

(*e*) obtains for himself, or for any other person, any pension, allowance or other advantage or privilege by a statement which is false, and which he either knows or believes to be false or does not believe to be true, or by making or using a false entry in any book or record, or by making any document containing a false statement, or by omitting to make a true entry or document containing a true statement,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to ten years or such less punishment as is in this Act mentioned.

39. Signing in blank and failure to report.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) when signing any document relating to pay, arms, ammunitions, equipment, clothing, supplies or stores, or any property of the Government fraudulently leaves in blank any material part for which his signature is a voucher; or

(*b*) refuses or by culpable neglect omits to make or send a report or return which it is his duty to make or send,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to three years or such less punishment as is in this Act mentioned.

IndiaCode

40. Offences relating to Force Court.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) being duly summoned or ordered to attend as a witness before a Force Court, wilfully or without reasonable excuse, makes default in attending; or

(*b*) refuses to take an oath or make an affirmation legally required by a Force Court to be taken or made; or

(*c*) refuses to produce or deliver any document in his power or control legally required by a Force Court to be produced or delivered by him; or

(*d*) refuses, when a witness, to answer any question which he is by law bound to answer; and

(*e*) is guilty of contempt of the Force Court by using insulting or threatening language, or by causing any interruption or disturbance in the proceedings of such court,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to three years or such less punishment as is in this Act mentioned.

41. False evidence.–Any person subject to this Act who, having been duly sworn or affirmed before any Force Court or other court competent under this Act to administer an oath or affirmation, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to seven years or such less punishment as is in this Act mentioned.

42. Unlawful detention of pay.–Any officer, subordinate officer or an under-officer who, having received the pay of a person subject to this Act unlawfully detains or refuses to pay the same when due, shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to five years or such less punishment as is in this Act mentioned.

43. Violation of good order and discipline.–Any person subject to this Act who is guilty of any act or omission which, though not specified in this Act, is prejudicial to good order and discipline of the Force shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend

to seven years or such less punishment as is in this Act mentioned.

44. Miscellaneous offences.–Any person subject to this Act who commits any of the following offences, namely:–

(*a*) being in command at any post or on the march, and receiving a complaint that any one under his command has beaten or otherwise maltreated or oppressed any person, or has disturbed any fair or market, or committed any riot or trespass, fails to have due reparation made to the injured person or to report the case to the proper authority; or

(*b*) by defiling any place of worship, or otherwise, intentionally insults the religion, or wounds the religious feelings of, any person; or

(*c*) attempts to commit suicide, and in such attempt does any act towards the commission of such offence; or

(*d*) being below the rank of subordinate officer, when off duty, appears without proper authority, in or about camp, or in or about, or when going to, or returning from, any town or bazaar, carrying a rifle, sword or other offensive weapon; or

(*e*) directly or indirectly accepts or obtains, or agrees to accept, or attempts to obtain, for himself or for any other person, any gratification as a motive or reward for procuring the enrolment of any person, or leave of absence, promotion or any other advantage or indulgence for any person in the service; or

(*f*) commits any offence against the property or person of any inhabitant of, or resident in, the country in which he is serving,

shall, on conviction by a Force Court, be liable to suffer imprisonment for a term which may extend to seven years or such less punishment as is in this Act mentioned.

45. Attempt.–Any person subject to this Act who attempts to commit any of the offences specified in sections 16 to 44 (both inclusive) and in such attempt does any act towards the commission of the offence shall, on conviction by a Force Court, where no express provision is made by this Act for the punishment of such attempt, be liable,–

(*a*) if the offence attempted to be committed is punishable with death, to suffer imprisonment for a term which may extend to fourteen years or such less punishment as is in this Act mentioned; and

(*b*) if the offence attempted to be committed is punishable with imprisonment, to suffer imprisonment for a term which may extend to one-half of the longest term provided for that offence or such less punishment as is in this Act mentioned.

46. Abetment of offences that have been committed.–Any person subject to this Act who abets the commission of any of the offences specified in sections 16 to 44 (both inclusive) shall, on conviction by a Force Court, if the Act abetted is committed in consequence of the abetment and no express provision is made by this Act for the punishment of such abetment, be liable to suffer the punishment provided for that offence or such less punishment as is in this Act mentioned.

47. Abetment of offences punishable with death and not committed.–Any person subject to this Act who abets the commission of any of the offences punishable with death, under sections 16, 19 and sub-section(*1*) of section 20 shall, on conviction by a Force Court, if that offence be not committed in consequence of the abetment, and no express provision is made by this Act for the punishment of such abetment, be liable to suffer imprisonment for a term which may extend to fourteen years or such less punishment as is in this Act mentioned.

48. Abetment of offences punishable with imprisonment and not committed.–Any person subject to this Act who abets the commission of any of the offences specified in sections 16 to 44 (both inclusive) and punishable with imprisonment shall, on conviction by a Force Court, if that offence be not committed in consequence of the abetment, and no express provision is made by this Act for the punishment of such abetment, be liable to suffer imprisonment for a term which may extend to one-half of the longest term provided for that offence or such less punishment as is in this Act mentioned.

IndiaCode

49. Civil offences.–Subject to the provisions of section 50, any person subject to this Act who at any place in, or beyond, India commits any civil offence shall be deemed to be guilty of an offence against this Act and, if charged therewith under this section shall be liable to be tried by a Force Court and, on conviction, be punishable as follows, namely:–

(*a*) if the offence is one which would be punishable under any law in force in India with death, he shall be liable to suffer any punishment, assigned for the offence, by the aforesaid law and such less punishment as is in this Act mentioned; and

(*b*) in any other case, he shall be liable to suffer any punishment, assigned for the offence by the law in force in India, or imprisonment for a term which may extend to seven years, or such less punishment as is in this Act mentioned.

50. Civil offences not triable by a Force Court.–A person subject to this Act who commits an offence of murder or culpable homicide not amounting to murder against, or of rape in relation to, a person not subject to this Act shall not be deemed to be guilty of an offence under this Act and shall not be tried by a Force Court, unless he commits any of the said offences–

(*a*) while on active duty; or

(*b*) at any place outside India; or

(*c*) at any place specified by the Central Government by notification, in this behalf.

CHAPTER IV

PUNISHMENTS

51. Punishment by Force Courts.–(*1*) Punishments may be inflicted in respect of offences committed by persons subject to this Act and convicted by Force Courts according to the scale following, namely:–

(*a*) death;

(*b*) imprisonment which may be for the term of life or any other lesser term but excluding imprisonment for a term not exceeding three months in Force custody;

(*c*) dismissal or removal from the service;

(*d*) compulsory retirement from the service;

(*e*) imprisonment for a term not exceeding three months in Force custody;

(*f*) reduction to the ranks or to a lower rank or grade or a place in the list of their rank in the case of an under-officer;

(*g*) reduction to next lower rank in case of an officer or subordinate officer:

Provided that no officer shall be reduced to a rank lower than the one to which he was initially appointed;

(*h*) forfeiture of seniority of rank and forfeiture of all or any part of the service for the purpose of promotion;

(*i*) forfeiture of service for the purpose of increased pay or pension;

(*j*) fine, in respect of civil offences;

(*k*) severe reprimand or reprimand except in the case of persons below the rank of an under-officer;

(*l*) forfeiture of pay and allowances for a period not exceeding three months for an offence committed on active duty;

(*m*) forfeiture in the case of person sentenced to dismissal from the service of all arrears of pay and allowances and other public money due to him at the time of such dismissal;

(*n*) stoppage of pay and allowances until any proved loss or damage occasioned by the offence for which he is convicted is made good.

IndiaCode

(*2*) Each of the punishments specified in sub-section (*1*) shall be deemed to be inferior in degree to every punishment preceding it in the above scale.

52. Alternative punishments by Force Courts.–Subject to the provisions of this Act, a Force Court may, on convicting a person subject to this Act of any of the offences specified in sections 16 to 48 (both inclusive) award either the particular punishment with which the offence is stated in the said sections to be punishable or, in lieu thereof, any one of the punishments lower in the scale set out in section 51 regard being had to the nature and degree of the offence.

53. Combination of punishments.–A Force Court may award in addition to, or without, any other punishment, the punishment specified in clause (*c*) of sub-section (*1*) of section 51 or any one or more of the punishments specified in clauses (*f*) to (*n*) of that sub-section.

54. Retention in the Force of a person convicted on active duty.–When on active duty an enrolled person has been sentenced by a Force Court to imprisonment whether combined with dismissal or not, the prescribed officer may direct that such person may be retained to serve in the ranks, and such service shall be reckoned as part of his term of imprisonment.

55. Punishments otherwise than by Force Courts.–Punishments may also be inflicted in respect of offences committed by persons subject to this Act without the intervention of a Force Court in the manner stated in sections 56, 58 and 59.

56. Minor punishments.–(*1*) Subject to the provisions of section 57, a commanding officer of and above the rank of Commandant may, in the prescribed manner, proceed against a person subject to this Act, other than an officer or a subordinate officer, who is charged with an offence under this Act and award such person, to the extent prescribed, one or more of the following punishments, namely:–

(*a*) imprisonment in Force custody up to twenty-eight days;

(*b*) detention up to twenty-eight days;

(*c*) confinement to the lines up to twenty-eight days;

(*d*) extra guards or duties;

(*e*) deprivation of any special position or special emoluments or any acting rank;

(*f*) severe reprimand or reprimand;

(*g*) fine up to fourteen days' pay in any one month;

(*h*) deductions from his pay and allowances of any sum required to make good any loss or damage occasioned by the offence for which he is punished.

(*2*) If any unit, training centre or other establishment of the Force is being temporarily commanded by an officer of the rank of Second-in Command or Deputy Commandant, such officer shall have full powers of a commanding officer specified in sub-section (*1*).

(*3*) Subject to the provisions of section 57, a Deputy Commandant or an Assistant Commandant, commanding a company or a detachment or an outpost, shall have the power to proceed against a person subject to this Act, other than an officer or a subordinate officer, who is charged with an offence under this Act and award such person to the extent prescribed, one or more of the punishments specified in clauses(*a*) to (*d*) and (*h*) of sub-section (*1*) provided that the maximum limit of punishment awarded under each of the clauses (*a*), (*b*) and (*c*) shall not exceed fourteen days.

(*4*) A subordinate officer not below the rank of Sub-Inspector who is commanding a detachment or an outpost shall have the powers to proceed against a person subject to this Act, other than a subordinate officer or an under-officer, who is charged with an offence under this Actand award such person to the extent prescribed, one or more of the punishments specified under clauses (*c*) and(*d*) of sub-section (*1*) provided that the maximum limit of punishment awarded under clause (*c*) shall not exceed fourteen days.

57. Limit of punishments under section 56.–(*1*) In the case of an award of two or more of the punishments specified in clauses (*a*),(*b*),(*c*)and (*d*) of sub-section (*1*) of section 56, the punishments specified in clause (*c*) or clause (*d*) shall take effect only at the end of the punishment specified in clause (*a*) or clause (*b*).

(*2*) When two or more of the punishments specified in clauses (*a*), (*b*) and (*c*) of sub-section (*1*) of section 56 are awarded to a person conjointly, or when already undergoing one or more of the said punishments, the whole extent of the punishments shall not exceed in the aggregate forty-two days.

(*3*) The punishments specified in clauses (*a*), (*b*) and (*c*) of subsection (*1*) of section 56 shall not be awarded to any person who is of the rank of an under-officer or was, at the time of committing the offence for which he is punished, of such rank.

(*4*) The punishment specified in clause (*f*) of sub-section (*1*) of section 56 shall not be awarded to any person below the rank of an under-officer.

58. Punishment of persons of or below the rank of Commandant by Inspector-General and others.–(*1*) An officer not below the rank of Inspector-General may, in the prescribed manner, proceed against an officer of or below the rank of Commandant who is charged with an offence under this Act and award one or more of the following punishments, namely:–

(*a*) forfeiture of seniority, or in the case of any of them whose promotion depends upon length of service, forfeiture of service for the purpose of promotion for a period not exceeding one year, but subject to the right of the accused previous to the award to elect to be tried by a Force Court;

(*b*) severe reprimand or reprimand;

(*c*) deduction from pay and allowances of any sum required to make good any proved loss or damage occasioned by the offence of which he is convicted.

(*2*) An officer not below the rank of Additional Deputy Inspector-General may, in the prescribed manner, proceed against a person of or below the rank of Subedar-Major or Inspector who is charged with an offence under this Act and award one or more of the following punishments, namely:–

(*a*) forfeiture of seniority, or in the case of any of them whose promotion depends upon the length of service, forfeiture of service for the purpose of promotion for a period not exceeding one year, but subject to the right of the accused previous to the award to elect to be tried by a Force Court;

(*b*) severe reprimand or reprimand;

(*c*) deduction from pay and allowances of any sum required to make good any proved loss or damage occasioned by the offence of which he is convicted.

(*3*) An officer not below the rank of Commandant may, in the prescribed manner, proceed against a person of or below the rank of Subedar-Major or Inspector who is charged with an offence under this Act and award any one or both of the following punishments, namely:–

(*a*) severe reprimand or reprimand;

(*b*) deduction from pay and allowances of any sum required to make good any proved loss or damage occasioned by the offence of which he is convicted.

59. Cancellation, variation or remittance of sentence.–(*1*) In every case in which punishment has been awarded under section 58, certified true copies of the proceedings shall be forwarded, in the prescribed manner, by the officer awarding the punishment to the prescribed superior authority who may, if the punishment awarded appears to him to be illegal, unjust or excessive, cancel, vary or remit the punishment and make such other direction as may be appropriate in the circumstances of the case.

(*2*) For the purpose of sub-section (*1*), a "superior authority" means,–

(*a*) any officer superior in command to such officer who has awarded the punishment;

(*b*) in the case of punishment awarded by Director-General, the Central Government.

60. Collective fines.–(*1*) Whenever any weapon or part of weapon or ammunition, forming part of the equipment of a unit, is lost or stolen, a commanding officer not below the rank of the Commandant of that unit may, after making such enquiry as he thinks fit, impose such collective fine as may be prescribed, upon the subordinate officers, under-officers and men of such unit, or upon so many of them as, in his judgment, should be held responsible for such loss or theft.

(*2*) Such fine shall be assessed as a percentage of the pay of the individuals on whom it falls.

CHAPTER V

DEDUCTIONS FROM PAY AND ALLOWANCES

61. Deductions from pay and allowances of persons subject to this Act.–(*1*) The following deductions may be made from the pay and allowances of an officer, namely:–

(*a*) all pay and allowances due to an officer for every day he absents himself without leave, unless a satisfactory explanation has been given to, and accepted by, the Inspector-General under whom he is for the time being serving;

(*b*) all pay and allowances for every day while he is in custody on a charge for an offence for which he is afterwards convicted by a criminal court or Force Court or by an officer exercising authority under section 58;

(*c*) any sum required to make good the pay of any person subject to this Act which he has unlawfully retained or unlawfully refused to pay;

(*d*) any sum required to make good such compensation for any expenses, loss, damage or destruction occasioned by the commission of an offence as may be determined by the Force Court by whom he is convicted of such offence or by an officer exercising authority under section 58;

(*e*) all pay and allowances ordered by Force Court;

(*f*) any sum required to be paid as fine awarded by a criminal court or a Force Court;

(*g*) any sum required to make good any loss, damage or destruction of public or Force property which, after due investigation, appears to the Inspector-General under whom the officer is for the time being serving, to have been occasioned by the wrongful act or negligence on the part of the officer;

(*h*) all pay and allowances forfeited by order of the Central Government if the officer is found by a court of inquiry constituted by the Director-General in this behalf, to have deserted to the enemy, or while in enemy hands, to have served with, or under the orders of, the enemy, or in any manner to have aided the enemy, or to have allowed himself to be taken prisoner by the enemy through want of due precaution or through disobedience of orders or wilful neglect of duty, or having been taken prisoner by the enemy, to have failed to rejoin his service when it was possible to do so;

(*i*) any sum required by order of the Central Government to be paid for the maintenance of his wife or his legitimate or illegitimate child or step child or towards the cost of any relief given by the said Government to the said wife or child.

(*2*) Subject to the provisions of section 63, the following deductions may be made from the pay and allowances of a person subject to this Act, other than an officer, namely:–

(*a*) all pay and allowances for every day of absence either on desertion or without leave or as a prisoner of war unless a satisfactory explanation has been given and accepted by his commanding officer and for every day of imprisonment awarded by a criminal court, Force Court or an officer exercising authority under section 56;

(*b*) all pay and allowances for every day while he is in custody on a charge for an offence of which he is afterwards convicted by a criminal court or Force Court or on a charge of absence without leave for which he is afterwards awarded imprisonment by an officer exercising authority under section 56;

(*c*) all pay and allowances for every day on which he is in hospital on account of sickness certified by the medical officer attending on him to have been caused by an offence under this Act committed by him;

(*d*) all pay and allowances for every day on which he is in hospital on account of sickness certified by the medical officer attending on him to have been caused by his own misconduct or imprudence, such sum as may be specified by the order of the Director-General;

(*e*) all pay and allowances ordered by Force Court or by an officer exercising authority under any of the sections 56 and 58 to be forfeited or stopped;

indiacode

(*f*) all pay and allowances for every day between his being recovered from the enemy and his dismissal from the service in consequence of his conduct when being taken prisoner by, or while in the hands of the enemy;

(*g*) any sum required to make good such compensation for any expenses, loss, damage or destruction caused by him to the Central Government or to any building or property or any private fund of the Force as may be awarded by his commanding officer;

(*h*) any sum required to pay a fine awarded by a criminal court, Force Court exercising jurisdiction under section 49 or an officer exercising authority under any of the sections 56 and 60;

(*i*) any sum required by order of the Central Government or any prescribed officer to be paid for the maintenance of his wife, or his legitimate or illegitimate child or step child or towards the cost of any relief given by the said Government to the said wife or child.

(*3*) For computation of time of absence or custody under this section,–

(*a*) no person shall be treated as absent or in custody for a day unless the absence or custody has lasted, whether wholly in one day, or partly in one day and partly in another for six consecutive hours or upwards;

(*b*) any absence or custody for less than a day may be reckoned as absence or custody for a day, if such absence or custody prevented the absentee from fulfilling any duty as member of the Force which was thereby thrown upon some other person;

(*c*) absence or custody for twelve consecutive hours or upwards may be reckoned as absence or custody for the whole of each day during any portion of which the person was absent or in custody;

(*d*) a period of absence, or imprisonment, which commences before, and ends after, midnight may be reckoned as a day.

62. Pay and allowances during trial.–In the case of any person subject to this Act who is in custody or under suspension from duty on a charge for an offence, the prescribed officer may direct that the whole or any part of the pay and allowances of such person shall be withheld, pending the result of his trial on the charge against him, in order to give effect to the provisions of clause (*b*) of sub-sections(*1*) and (*2*) of section 61.

63. Limit of certain deductions.–The total deductions from the pay and allowances of a person made under clauses (*e*) and (*g*) to (*i*) of sub-section (*2*) of section 61 shall not, except where he is sentenced to dismissal or removal, exceed in any one month one-half of his pay and allowances for that month.

64. Deduction from public money due to a person.–Any sum authorised by this Act to be deducted from the pay and allowances of any person may, without prejudice to any other mode of recovering the same, be deducted from any public money due to him other than a pension.

65. Pay and allowances of prisoner of war during inquiry into his conduct.–Where the conduct of any person subject to this Act when being taken prisoner by, or while in the hands of, the enemy, is to be inquired into under this Act or any other law, the Director-General or any officer authorised by him may order that the whole or any part of the pay and allowances of such person shall be withheld pending the result of such inquiry.

66. Remission of deductions.–Any deduction from pay and allowances authorised by this Act may be remitted in such manner and to such extent, and by such authority, as may from time to time be prescribed.

67. Provision for dependants of prisoner of war from his remitted deductions and pay and allowances.–(*1*) In the case of all persons subject to this Act, being prisoners of war, whose pay and allowances have been forfeited under clause (*h*) of sub-section (*1*) or clause (*a*) of sub-section (*2*) of section 61 but in respect of whom a remission has been made under section 66, it shall be lawful for the Central Government or the Director-General, when so authorised by the Central Government, to make provisions in respect of pay and allowances for any dependants of such persons and any such remission shall in that case be deemed to apply only to the balance thereafter remaining of such pay and allowances.

(*2*) It shall be lawful for the Central Government or the Director General, when so authorised by the Central Government, to make provisions for any dependants of any person subject to this Act who is a prisoner of war, or is missing, in respect of his pay and allowances.

68. Period during which a person is deemed to be a prisoner of war.–For the purposes of section 67, a person shall be deemed to continue to be a prisoner of war until the conclusion of any inquiry into his conduct such as is referred to in section 65 and if he is dismissed from the service in consequence of such conduct, until the date of such dismissal.

CHAPTER VI

ARREST AND PROCEEDINGS BEFORE TRIAL

69. Custody of offenders.–(*1*) Any person subject to this Act who is charged with any offence may be taken into Force custody under the order of any superior officer.

(*2*) Notwithstanding anything contained in sub-section (*1*), an officer may order into Force custody any other officer, though such other officer may be of a higher rank, if he engages in a quarrel, affray or disorder.

70. Duty of commanding officer in regard to detention.–(*1*) It shall be the duty of every commanding officer to take care that a person under his command when charged with an offence is not detained in custody for more than forty-eight hours after the committal of such person into custody is reported to him, without the charge being investigated, unless investigation in the prescribed procedure, within that period seems to him to be impracticable having regard to the public service.

(*2*) The case of every person being detained in custody beyond a period of forty-eight hours, and the reasons there for, shall be reported by the commanding officer to the next higher officer or such other officer to whom an application may be made to convene a Force Court for the trial of the person charged.

(*3*) In reckoning the period of forty-eight hours specified in sub-section (*1*), Sundays and other public holidays shall be excluded.

(*4*) The manner in which and the period for which any person subject to this Act may be taken into and detained in Force custody, pending the trial by any competent authority for any offence committed by him, shall be in such manner as may be prescribed.

71. Interval between committal and trial.–In every case where any such person as is mentioned in section 69 and as is not on active duty, remains in such custody for a longer period than eight days without a Force Court for his trial being convened, a special report giving reasons for the delay shall be made by his commanding officer in the manner prescribed, and a similar report shall be forwarded at intervals of every eight days until a Force Court is convened or such person is released from custody.

72. Arrest by civil authorities.–Whenever any person, subject to this Act, who is accused of an offence under this Act, is within the jurisdiction of any magistrate or police officer, such magistrate or police officer shall aid in the apprehension and delivery to Force custody of such person upon receipt of a written application to that effect signed by his commanding officer or an officer authorised by the commanding officer in that behalf.

73. Capture of deserters.–(*1*) Whenever any person subject to this Act deserts, the commanding officer of the unit to which he belongs or is attached, shall give information of the desertion to such civil authorities as, in his opinion, may be able to afford assistance towards the capture of the deserter; and such authorities shall thereupon take steps for the apprehension of the said deserter in like manner as if he were a person for whose apprehension a warrant had been issued by a magistrate, and shall deliver the deserter, when apprehended, into Force custody.

(*2*) Any police officer may arrest without warrant any person reasonably believed to be subject to this Act, and to be a deserter or to be travelling without authority, and shall bring him without delay before the nearest magistrate, to be dealt with according to law.

74. Inquiry into absence without leave.–(*1*) When any person subject to this Act has been absent from duty without due authority for a period of thirty days, a court of inquiry shall, as soon as practicable, be appointed by such authority and in such manner as may be prescribed; and such court shall, on oath or affirmation administered in the prescribed manner, inquire in respect of the absence of the person, and the

deficiency, if any, in the property of the Government entrusted to his care, or in any arms, ammunition, equipment, instruments, clothing or accessories; and if satisfied of the fact of such absence without due authority or other sufficient cause, the court shall declare such absence and the period thereof and the said deficiency, if any, and the commanding officer of the unit to which the person belongs or is attached, shall make a record thereof in the prescribed manner.

(*2*) If the person declared absent does not afterwards surrender or is not apprehended, he shall, for the purposes of this Act, be deemed to be a deserter.

75. Force Police Officers.–(*1*) The Director-General or any prescribed officer may appoint persons (in this Act referred to as Force Police) for discharging the functions specified in sub-sections (*2*) and (*3*).

(*2*) The duties of a person appointed under sub-section (*1*) are to take charge of persons confined for any offence, to preserve good order and discipline and to prevent breaches of the same by persons serving in, or attached to the Force.

(*3*) Notwithstanding anything contained in section 69, a person appointed under sub-section (*1*) may, at any time, arrest and detain for trial any person subject to this Act who commits, or is charged with, an offence, and may also carry into effect any punishment to be inflicted in pursuance of a sentence awarded by a Force Court or by an officer exercising authority under section 56 but shall not inflict any punishment on his own authority:

Provided that no officer shall be so arrested or detained otherwise than on the order of another officer.

CHAPTER VII

FORCE COURTS

IndiaCode

76. Kinds of Force Courts.–For the purposes of this Act, there shall be three kinds of Force Courts, namely:–

(*a*) General Force Courts;

(*b*) Petty Force Courts; and

(*c*) Summary Force Courts,

which shall be convened in the manner prescribed.

77. Power to convene a General Force Court.–A General Force Court may be convened by the Central Government or the Director- General or by any officer empowered in this behalf by warrant of the Director-General.

78. Power to convene a Petty Force Court.–A Petty Force Court may be convened by an officer having power to convene a General Force Court or by an officer empowered in this behalf by warrant of any such officer.

79. Warrants issued under sections 77 and 78.–A warrant issued under section 77 or section 78 may contain such restrictions, reservations or conditions as the officer issuing it may think fit.

80. Composition of a General Force Court.–A General Force Court shall consist of not less than five officers.

81. Composition of a Petty Force Court.–A Petty Force Court shall consist of not less than three officers.

82. Summary Force Court.–(*1*) A Summary Force Court may be held by the commanding officer of any unit and he alone shall constitute the Court.

(*2*) The proceedings shall be attended throughout by two other persons who shall be officers or subordinate officers or one of either, and who shall not as such, be sworn or affirmed.

83. Dissolution of a Force Court.–(*1*) If a Force Court after the commencement of a trial is reduced below the minimum number of officers required by this Act, it shall be dissolved.

(*2*) If, on account of the illness of the concerned Judge Attorney or, as the case may be, Deputy Judge Attorney-General or Additional Judge Attorney-General or of the accused before the finding, it is impossible to continue the trial, the Force Court shall be dissolved.

(*3*) The authority or officer who convened a Force Court may dissolve the same if it appears to him that the exigencies of the service or necessities of discipline render it impossible or inexpedient to continue the said Force Court.

(*4*) Where a Force Court is dissolved under this section, the accused may be tried again.

84. Powers of a General Force Court. –A General Force Court shall have the power to try any person subject to this Act for any offence punishable there under and to pass any sentence authorised thereby.

85. Powers of a Petty Force Court.–A Petty Force Court shall have the power to try any person subject to this Act other than an officer or a subordinate officer for any offence made punishable there under and to pass any sentence authorised by this Act other than a sentence of death or imprisonment for a term exceeding two years.

86. Powers of a Summary Force Court.–(*1*) Subject to the provisions of sub-section (*2*), a Summary Force Court may try any offence punishable under this Act.

(*2*) When there is no grave reason for immediate action and reference can without detriment to discipline be made to the officer empowered to convene a Petty Force Court for the trial of the alleged offender, an officer holding a Summary Force Court shall not try without such reference any offence punishable under any of the sections 16, 19 and 49, or any offender against the officer holding the Court.

(*3*) A Summary Force Court may try any person subject to this Act and under the command of the officer holding the Court, except an officer or a subordinate officer.

(*4*) A Summary Force Court may pass any sentence which may be passed under this Act, except the sentence of death or of imprisonment for a term exceeding the limit specified in sub-section (*5*).

(*5*) The limit referred to in sub-section (*4*) shall be,–

(*a*) one year, if the officer holding the Force Court holds the rank not below that of a Commandant;

(*b*) three months, in any other case.

87. Prohibition of second trial.–(*1*) When any person, subject to this Act has been acquitted or convicted of an offence by a Force Court or by a criminal court or has been dealt with under section 56 or section 58, he shall not be liable to be tried again for the same offence by a Force Court or dealt with under the said sections.

(*2*) When any person, subject to this Act, has been acquitted or convicted of an offence by a Force Court or has been dealt with under section 56 or section 58, he shall not be liable to be tried again by a criminal court for the same offence or on the same facts.

88. Period of limitation for trial.–(*1*) Except as provided by sub-section (*2*), no trial by a Force Court of any person subject to this Act for any offence shall be commenced after the expiration of a period of three years from the date of such offence.

(*2*) The provisions of sub-section (*1*) shall not apply to a trial for an offence of desertion or for any of the offences mentioned in section 19.

(*3*) In the computation of the period of time mentioned in sub-section (*1*), anytime spent by such person in evading arrest after the commission of the offence, shall be excluded.

89. Trial, etc., of offender who ceases to be subject to this Act.–(*1*) Where an offence under this Act had been committed by any person while subject to this Act, and he has ceased to be so subject, he may be taken into and kept in Force custody and tried and punished for such offence as if he continued to be so subject.

(*2*) No such person shall be tried for an offence, unless his trial commences within six months after he had ceased to be subject to this Act:

Provided that nothing contained in this sub-section shall apply to the trial of any such person for an offence of desertion or for any of the offences mentioned in section 19 or shall affect the jurisdiction of a criminal court to try any offence triable by such court as well as by a Force Court.

90. Application of Act during term of sentence.–(*1*) When a person subject to this Act is sentenced by a Force Court to imprisonment, this Act shall apply to him during the term of his sentence, though he is dismissed from the Force, or has otherwise ceased to be subject to this Act, and he may be kept, removed, imprisoned and punished as if he continued to be subject to this Act.

(*2*) When a person subject to this Act is sentenced by a Force Court to death, this Act shall apply to him till the sentence is carried out.

91. Place of trial, etc.–(*1*) Any person subject to this Act who commits any offence under this Act may be tried and punished for such offence at any place.

(*2*) The persons by whom an accused may be defended in a trial and appearance of such persons thereat may be as prescribed.

92. Choice between criminal court and Force Court.–When a criminal court and a Force Court have each jurisdiction in respect of an offence, it shall be in the discretion of the Director-General, Additional Director-General or the Inspector-General or the Deputy Inspector-General or the Additional Deputy Inspector-General within whose command the accused person is serving or such other officer as may be prescribed, to decide before which court the proceedings shall be instituted, and if that officer decides that they shall be instituted before a Force Court, then he may direct that the accused person shall be detained in Force custody.

93. Power of criminal court to require delivery of offender.–(*1*) When a criminal court having jurisdiction is of opinion that proceedings shall be instituted before itself in respect of any alleged offence, it may, by written notice, require the officer referred to in section 92 at his option, either to deliver over the offender to the nearest magistrate to be proceeded against according to law, or to postpone proceedings, pending a reference to the Central Government.

(*2*) In every such case the said officer shall either deliver over the offender in compliance with the requisition, or shall forthwith refer the question as to the court before which the proceedings are to be instituted, for the determination of the Central Government whose order upon such reference shall be final.

CHAPTER VIII

PROCEDUREOF FORCE COURTS

94. Presiding officer.–At every General Force Court or Petty Force Court, the senior member shall be the presiding officer.

95. Judge Attorneys.–(*1*) Every General Force Court shall, and every Petty Force Court may be attended by a Judge Attorney or a Deputy Judge Attorney-General or an Additional Judge Attorney-General, or, if no such officer is available, an officer approved by the Judge Attorney- General or by any officer authorised in this behalf by the Judge Attorney-General.

(*2*) The recruitment and conditions of service of Judge Attorney- General, Additional Judge Attorney-General, Deputy Judge Attorney-General and Judge Attorney shall be such as may be prescribed.

96. Objections.–(*1*) At all trials by a General Force Court or by a Petty Force Court, as soon as the Court is assembled, the names of the presiding officer and members shall be read over to the accused, who shall thereupon be asked whether he objects to being tried by any officer sitting on the Court.

(*2*) If the accused objects to such officer, his objection and also the reply thereto of the officer objected to shall be heard and recorded, and the remaining officers of the Court shall, in the absence of the challenged officer decide on the objection.

(*3*) If the objection is allowed by one-half or more of the votes of the officers entitled to vote, the objection shall be allowed, and the member objected to shall retire, and his vacancy maybe filled in the prescribed manner, by another officer subject to the same right of the accused to object.

(*4*) When no objection is made, or when an objection has been made and disallowed, or the vacancy of an officer has been filled by another officer under sub-section (*3*) to which no objection is made or allowed, the Court shall proceed with the trial.

97. Oath of members, Judge Attorneys and witnesses.–(*1*) An oath or affirmation in the prescribed manner shall be administered to every member of the Force Court and to the Judge Attorney, or, as the case may be, the Deputy Judge Attorney-General or the Additional Judge Attorney-General or the officer approved under section 95, before the commencement of the trial.

(*2*) Every person giving evidence before a Force Court shall be examined after being duly sworn or affirmed in the prescribed form.

(*3*) The provisions of sub-section (*2*) shall not apply where the witness is a child under twelve years of age and the Force Court is of opinion that though the witness understands the duty of speaking the truth, he does not understand the nature of an oath or affirmation.

98. Voting by members.–(*1*) Subject to the provisions of sub-sections (*2*) and (*3*), every decision of a Force Court shall be passed by an absolute majority of votes; and where there is an equality of votes on either the finding or the sentence, the decision shall be in favour of the accused.

(*2*) No sentence of death shall be passed by a General Force Court without the concurrence of at least two-thirds of the members of the Court.

(*3*) In matters other than an objection or the finding or sentence, the presiding officer shall have a casting vote.

99. General rule as to evidence.–The Indian Evidence Act, 1872 (1 of 1872), shall, subject to the provisions of this Act, apply to all proceedings before a Force Court.

100. Judicial notice.–A Force Court may take judicial notice of any matter within the general knowledge of the members as officers of the Force.

101. Summoning of witnesses.–(*1*) The convening officer or the presiding officer of a Force Court or the Judge Attorney or, as the case may be, the Deputy Judge Attorney-General or the Additional Judge Attorney-General or the officer approved under section 95 or the commanding officer of the accused person may, by summons under his hand, require the attendance, at a time and place to be mentioned in the summons, of any person either to give evidence or to produce any document or other thing.

(*2*) In the case of a witness who is subject to this Act or any other Act relating to the armed forces of the Union, the summons shall be sent to his commanding officer and such officer shall serve it upon him accordingly.

(*3*) In the case of any other witness, the summons shall be sent to the magistrate within whose jurisdiction he may be, or resides, and such magistrate shall give effect to the summons as if the witness were required in the court of such a magistrate.

(*4*) When a witness is required to produce any particular or other thing in his possession or power, the summons shall describe it with reasonable precision.

102. Documents exempted from production.–(*1*) Nothing in section101 shall be deemed to affect the operation of sections 123 and 124 of the Indian Evidence Act, 1872 (1 of 1872), or to apply to any letter, postcard, telegram or other document in the custody of the postal or telegraph authorities.

(*2*) If any document in such custody is, in the opinion of any District Magistrate, Chief Metropolitan Magistrate, Chief Judicial Magistrate, Court of Sessions or High Court wanted for the purpose of any Force Court, such Magistrate or Court may require the postal or telegraph authorities, as the case may be, to deliver such document to such person as such Magistrate or Court may direct.

(*3*) If any such document is, in the opinion of any other magistrate or of any Commissioner of Police or District Superintendent of Police, wanted for any such purpose, he may require the postal or telegraph authorities, as the case may be, to cause such search to be made for, and to detain such document pending the orders of any such District Magistrate, Chief Metropolitan Magistrate, Chief Judicial Magistrate, Court of Sessions or High Court.

103. Commission for examination of witnesses.–(*1*) Whenever, in the course of a trial by a Force Court, it appears to the Court that the examination of a witness is necessary for the ends of justice, and that the attendance of such witness cannot be procured without an amount of delay, expense or inconvenience which, in the circumstances of the case, would be unreasonable, such Court may address the Judge Attorney-General in order that a commission to take the evidence of such witness may be issued.

(*2*) The Judge Attorney-General may then, if he thinks necessary, issue a commission to any Metropolitan Magistrate or Judicial Magistrate of the first class, within the local limits of whose jurisdiction such witness resides, to take the evidence of such witness.

(*3*) The Magistrate to whom the commission is issued, or, if he is the Chief Metropolitan Magistrate, or Chief Judicial Magistrate, or such Metropolitan Magistrate, or Judicial Magistrate, as he appoints in this behalf, shall summon the witness before him or proceed to the place where the witness is, and shall take down his evidence in the same manner, and may for this purpose exercise the same powers, as in the trials of warrant-cases under the Code of Criminal Procedure, 1973 (2 of 1974).

(*4*) When the witness resides in a tribal area or in any place outside India, the commission may be issued in the manner specified in Chapter XXIII of the Code of Criminal Procedure, 1973 (2 of 1974).

104. Examination of a witness on commission.–(*1*) The prosecutor and the accused person in any case in which a commission is issued under section 103 may respectively forward any interrogatories in writing which the court may think relevant to the issue, and the Magistrate executing the commission shall examine the witness upon such interrogatories.

(*2*) The prosecutor and the accused person may appear before such Magistrate by counsel, or, except in the case of an accused person in custody, in person, and may examine, cross-examine and re-examine, as the case may be, the said witness.

(*3*) After a commission issued under section 103 has been duly executed, it shall be returned, together with the deposition of the witness examined there under to the Judge Attorney-General.

(*4*) On receipt of a commission, and deposition returned under sub-section (*3*), the Judge Attorney-General shall forward the same to the Court at whose instance the commission was issued or, if such Court has been dissolved, to any other Court convened for the trial of the accused person; and the commission, the return thereto and the deposition shall be open to inspection by the prosecutor and the accused person, and may, subject to all just exceptions, be read in evidence in the case by either the prosecutor or the accused, and shall form part of the proceedings of the Court.

(*5*) In every case in which a commission is issued under section 103, the trial may be adjourned for specified time reasonably sufficient for the execution and return of the commission.

105. Conviction for offences not charged.–A person charged before a Force Court with—

(*a*) desertion may be found guilty of attempting to desert or of being absent without leave;

(*b*) attempting to desert may be found guilty of being absent without leave;

(*c*) using criminal force may be found guilty of assault;

(*d*) using threatening language may be found guilty of using insubordinate language;

(*e*) any one of the offences specified in clauses (*a*),(*b*),(*c*)and(*d*)of section 33 may be found guilty of any other of these offences with which he might have been charged;

(*f*) an offence punishable under section 49 may be found guilty of any other offence of which he might have been found guilty, if the provisions of the Code of Criminal Procedure, 1973 (2 of 1974) were applicable.

(*g*) any offence under this Act may, on failure of proof of an offence having been committed in circumstances involving a more severe punishment, be found guilty of the same offence as having been committed in circumstances involving a less severe punishment;

(*h*) any offence under this Act may be found guilty of having attempted or abetted the commission of that offence, although the attempt or abetment is not separately charged.

106. Presumption as to signatures.–In any proceeding under this Act, any application, certificate, warrant, reply or other document purporting to be signed by an officer in the service of the Government shall, on production, be presumed to have been duly signed by the person by whom and in the character in which it purports to have been signed, until the contrary is shown.

107. Enrolment paper.–(*1*) Any enrolment paper purporting to be signed by an enrolling officer shall, in proceedings under this Act, be evidence of the person enrolling having given the answers to questions which he is therein represented as having given.

(*2*) The enrolment of such person may be proved by the production of the original or a copy of this enrolment paper purporting to be certified to be a true copy by the office having the custody of the enrolment paper or service record.

108. Presumption as to certain documents.–(*1*) A letter, return or other document respecting the service of any person in, or the dismissal, removal or discharge of any person from, any unit of the Force, or respecting the circumstances of any person not having served in, or belonged to, any unit of the Force, if purporting to be signed by or on behalf of the Central Government or the Director-General, or by any prescribed officer, shall be evidence of the facts stated in such letter, return or other document.

(*2*) A Force List or Gazette purporting to be published by authority shall be evidence of the status and rank of the officers, subordinate officers therein mentioned, and of any appointment held by them and of the battalion, unit, or branch of the Force to which they belong.

(*3*) Where a record is made in any battalion book in pursuance of this Act or of any rules made there under or otherwise in the discharge of official duties, and purports to be signed by the commanding officer or by the officers whose duty it is to make such record, such record shall be evidence of the facts therein stated.

(*4*) A copy of any record in any office of the Force purporting to be certified to be true copy by the officer having custody of such book shall be evidence of such record.

(*5*) Where any person subject to this Act is being tried on a charge of desertion or of absence without leave, and such person has surrendered himself into the custody of any officer or other person, subject to this Act, or any unit of the Force, or has been apprehended by such officer or person, a certificate purporting to be signed by such officer, or by the commanding officer of the unit to which such person belongs or is attached, as the case may be, and stating the fact, date and place of such surrender or apprehension, and the manner in which he was dressed shall be evidence of the matters so stated.

(*6*) Where any person subject to this Act is being tried on a charge of desertion or of absence without leave and such person has surrendered himself into the custody of, or has been apprehended by, a police officer not below the rank of an officer in charge of a police station, a certificate purporting to be signed by such police officer and stating the fact, date and place of such surrender or apprehension and the manner in which he was dressed shall be evidence of the matters so stated.

(*7*) (*a*) Any document purporting to be a report under the hand of a Government scientific expert to whom this sub-section applies, upon any matter or thing duly submitted to him for examination or analysis and report in the course of any proceeding under this Act, may be used as evidence in any inquiry, trial or other proceeding under this Act.

(*b*) The Force Court may, if it thinks fit, summon and examine any such expert as to the subject matter of his report.

(*c*) Where any such expert is summoned by a Force Court and he is unable to attend personally, he may, unless the Court has expressly directed him to appear personally, depute an officer who is conversant with the facts of the case to depose in the Court on his behalf.

(*d*) This sub-section applies to the Government scientific expert, for the time being specified in sub-section(*4*) of section 293oftheCodeof Criminal Procedure, 1973 (2 of 1974).

109. Reference by accused to Government officer.–(*1*) If at any trial for desertion or absence without leave, over-staying leave or not rejoining when warned for service, the accused person states in his defence any sufficient or reasonable excuse for his unauthorised absence, and refers in support thereof to any officer in the service of the Government, or if it appears that any such officer is likely to prove or

India Code

disprove the said statement in the defence, the Court shall address such officer and adjourn the proceedings until his reply is received.

(*2*) The written reply of any officer so referred to shall, if signed by him, be received in evidence and have the same effect as if made on oath before the Court.

(*3*) If the Court is dissolved before the receipt of such reply or if the Court omits to comply with the provisions of this section, the convening officer may, at his discretion, annul the proceedings and order a fresh trial.

110. Evidence of previous convictions and general character.–(*1*) When any person subject to this Act has been convicted by a Force Court of any offence, such Force Court may inquire into, and receive, and record evidence of any previous convictions of such person, either by a Force Court or by a criminal court, or any previous award of punishment under section 56 or section 58, and may further inquire into and record the general character of such person and such other matters as may be prescribed.

(*2*) Evidence received under this section may be either oral, or in the shape of entries in, or certified extracts from, books of Force Courts or other official record; and it shall not be necessary to give notice before trial to the person tried that evidence as to his previous convictions or character will be received.

(*3*) At a Summary Force Court, the officer holding the trial may, if he thinks fit, record any previous convictions against the offender, his general character, and such other matters as may be prescribed, as of his own knowledge, instead of requiring them to be proved under the foregoing provisions of this section.

111. Lunacy of accused.–(*1*) Whenever, in the course of a trial by aForce Court, it appears to the Court that the person charged is by reason of unsoundness of mind incapable of making his defence, or that he committed the act alleged but was by reason of unsoundness of mind incapable of knowing the nature of the act or knowing that it was wrong or contrary to law, the Court shall record a finding accordingly.

(*2*) The presiding officer of the Court, or, in the case of a Summary Force Court, the officer holding the trial, shall forthwith report the case to the confirming officer, or to the authority empowered to deal with its finding under section 129, as the case may be.

(*3*) The confirming officer to whom the case is reported under sub-section (*2*) may, if he does not confirm the finding, take steps to have the accused person tried by the same or another Force Court for the offence with which he was charged.

(*4*) The authority to whom the finding of a Summary Force Court is reported under sub-section (*2*) and a confirming officer confirming the finding in any case so reported to him shall order the accused person to be kept in custody in the prescribed manner and shall report the case for the orders of the Central Government.

(*5*) On receipt of a report under sub-section (*4*), the Central Government may order the accused person to be detained in a lunatic asylum or other suitable place of safe custody.

112. Subsequent fitness of lunatic accused for trial.–Where any accused person, having been found by reason of unsoundness of mind to be incapable of making his defence, is in custody or under detention under section 111, any officer prescribed in this behalf, may–

(*a*) if such person is in custody under sub-section (*4*) of section 111, on the report of a medical officer that he is capable of making his defence, or

(*b*) if such person is detained in a jail under sub-section (*5*) of section 111, on a certificate of the Inspector-General of Prisons, and if such person is detained in a lunatic asylum under the said sub-section, on a certificate of any two or more of the visitors of such asylum and if he is detained in any other place under that sub-section, on a certificate of the prescribed authority, that he is capable of making his defence, take steps to have such person tried by the same or another Force Court for the offence with which he was originally charged or, if the offence is a civil offence, by a criminal court.

113. Transmission to Central Government of order under section 112.–A copy of every order made by an officer under section 112 for the trial of the accused shall forthwith be sent to the Central Government.

IndiaCode

114. Release of lunatic accused.–Where any person is in custody under sub-section (*4*) of section 111 or under detention under sub-section (*5*) of that section,–

(*a*) if such person is in custody under the said sub-section (*4*), on the report of a medical officer, or

(*b*) if such person is detained under the said sub-section (*5*), on a certificate from any of the authorities mentioned in clause (*b*) of section 112 that in the judgment of such officer or authority such person may be released without danger of his causing injury to himself or to any other person,

the Central Government may order that such person be released or detained in custody or transferred to a public lunatic asylum if he has not already been sent to such an asylum.

115. Delivery of lunatic accused to relatives.–Where any relative or friend of any person who is in custody under sub-section (*4*) of section111 or under detention under sub-section (*5*) of that section desires that he should be delivered to his care and custody, the Central Government may, upon application by such relative or friend and, on his giving security to the satisfaction of that Government that the person delivered shall be properly taken care of, and, prevented from doing injury to himself or to any other person, and be produced for the inspection of such officer, and at such times and places, as the Central Government may direct, order such person to be delivered to such relative or friend.

116. Order for custody and disposal of property pending trial.–When any property regarding which any offence appears to have been committed, or which appears to have been used for the commission of any offence, is produced before a Force Court during a trial, the Court may make such order as it thinks fit for the proper custody of such property pending the conclusion of the trial, and if the property is subject to speedy or natural decay may, after recording such evidence as it thinks necessary, order it to be sold or otherwise disposed of.

117. Order for disposal of property regarding which offence is committed.–(*1*) After the conclusion of a trial before any Force Court, the Court or the office confirming the finding or sentences of such Force Court, or any authority superior to such officer, or, in the case of Summary Force Court whose finding or sentences does not require confirmation, an officer not below the rank of Additional Deputy Inspector-General within whose command the trial was held, may make such order as it or he thinks fit for the disposal by destruction, confiscation, delivery to any person claiming to be entitled to possession thereof, or otherwise, of any property or document produced before the Court or in its custody, or regarding which any offence appears to have been committed or which has been used for the commission of any offence.

(*2*) Where any order has been made under sub-section (*1*) in respect of property regarding which an offence appears to have been committed, a copy of such order signed and certified by the authority making the same may, whether the trial was held with in India or not, be sent to a magistrate within whose jurisdiction such property for the time being is situated, and such magistrate shall thereupon cause the order to be carried into effect as if it were an order passed by him under the provisions of the Code of Criminal Procedure, 1973 (2 of 1974).

(*3*) In this section the term "property" includes, in the case of property regarding which an offence appears to have been committed, not only such property as has been originally in the possession or under the control of any person, but also any property into or for which the same may have been converted or exchanged, and anything acquired by such conversion or exchange whether immediately or otherwise.

118. Powers of Force Court in relation to proceedings under this Act.–Any trial by a Force Court under the provisions of this Act shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Indian Penal Code (45 of 1860) and the Force Court shall be deemed to be a Court within the meaning of sections 345 and 346 of the Code of Criminal Procedure, 1973 (2 of 1974).

119. Tender of pardon to accomplices.–(*1*) With a view to obtaining the evidence of any person supposed to have been directly or indirectly concerned in or privy to an offence triable by a Force Court other than a Summary Force Court under this Act, the commanding officer, the convening officer or the Force Court, at any stage of investigation or inquiry into or the trial of, the offence, may tender a pardon to such person on condition of his making a full and true disclosure of the whole of the circumstances within his knowledge relating to the offence and to every other person concerned, whether as principal or abettor, in the commission thereof.

(*2*) The commanding officer or the convening officer who tenders pardon under sub-section (*1*) shall record,–

(*a*) his reasons for so doing;

(*b*) whether the tender was or was not accepted by the person to whom it was made, and shall, on application made by accused, furnish him with a copy of such record free of cost.

(*3*) Every person accepting a tender of pardon made under sub-section (*1*)–

(*a*) shall be examined as a witness by the commanding officer of the accused and in the subsequent trial, if any;

(*b*) may be detained in Force custody until the termination of the trial.

120. Trial of person not complying with conditions of pardon.–(*1*)Where, in regard to a person who has accepted a tender of pardon made under section 119, the Judge Attorney, or as the case may be, the Deputy Judge Attorney-General, or the Additional Judge Attorney-General, or the officer approved under section 95, certifies that in his opinion such person has, either by wilfully concealing anything essential or by giving false evidence, not complied with the conditions on which the tender was made, such person may be tried for the offence in respect of which the pardon was so tendered or for any other offence of which he appears to have been guilty in connection with the same matter, and also for the offence of giving false evidence:

Provided that such person shall not be tried jointly with any of the other accused.

(*2*) Any statement made by such person accepting the tender of pardon and recorded by his commanding officer or Force Court may be given in evidence against him at such trial.

(*3*) At such trial, the accused shall be entitled to plead that he has complied with the condition upon which such tender was made; in which case it shall be for the prosecution to prove that the condition has not been complied with.

(*4*) At such trial, the Force Court shall, before arraignment, ask the accused whether he pleads that he has complied with the conditions on which the tender of pardon was made.

(*5*) If the accused does so plead, the Court shall record the plea and proceed with the trial and it shall, before giving its finding on the charge, find whether or not the accused has complied with the conditions of the pardon, and, if it finds that he has so complied, it shall give a verdict of not guilty.

CHAPTER IX

CONFIRMATION AND REVISION OF PROCEEDINGS

121. Finding and sentence not valid unless confirmed.–No finding or sentence of a General Force Court or a Petty Force Court shall be valid except so far as it may be confirmed as provided by this Act.

122. Power to confirm finding and sentence of General Force Court.–The findings and sentences of General Force Courts may be confirmed by the Central Government or by any officer empowered in this behalf by warrant of the Central Government.

123. Power to confirm finding and sentence of Petty Force Court.– The findings and sentences of a Petty Force Court may be confirmed by an officer having power to convene a General Force Court or by any officer empowered in this behalf by warrant of such officer.

124. Limitation of powers of confirming authority.– A warrant issued under section 122 or section 123 may contain such restrictions, reservations or condition as the authority issuing it may think fit.

125. Power of confirming authority to mitigate, remit or commute sentences.–Subject to such restrictions, reservations or conditions, as may be contained in any warrant issued under section 122 or section 123, a confirming authority may, when confirming the sentence of a Force Court, mitigate or remit the punishment thereby awarded or commute that punishment for any punishment or punishments lower in the scale laid down in section 51.

IndiaCode

126. Confirming of findings and sentences on board a ship.–When any person subject to this Act is tried and sentenced by a Force Court while on board a ship, the finding and sentence so far as not confirmed and executed on board the ship, may be confirmed and executed in like manner as if such person had been tried at the port of disembarkation.

127. Revision of finding or sentence.–(*1*) Any finding or sentence ofa Force Court which requires confirmation may be once revised by order of the confirming authority and on such revision, the Court, if so directed by the confirming authority, may take additional evidence.

(*2*)The Court on revision, shall consist of the same officers as were present when the original decision was passed unless any of those officers are unavoidably absent.

(*3*) In case of such unavoidable absence the cause thereof shall be duly certified in the proceedings and the Court shall proceed with the revision provided that, in the case of a General Force Court it consists of five officers and in the case of a Petty Force Court, of three officers.

128. Finding and sentence of a Summary Force Court.–The finding and sentence of a Summary Force Court shall not require to be confirmed, but may be carried out forthwith.

129. Transmission of proceedings of Summary Force Court.–The proceedings of every Summary Force Court shall be forwarded without delay to the officer not below the rank of Additional Deputy Inspector-General within whose command the trial was held, or to the prescribed officer, and such officer, or the Director-General or any officer empowered by him in this behalf may, for reasons based on the merits of the case, but not on merely technical grounds, set aside the proceedings, or reduce the sentence to any other sentence which the Court might have passed.

130. Alteration of finding or sentence in certain cases.–(*1*) Where a finding of guilty by a Force Court, which has been confirmed or which does not require confirmation, is found for any reason to be invalid or cannot be supported by the evidence, the authority which would have had power under section 142 to commute the punishment awarded by the sentence, if the finding had been valid may substitute a new finding and pass a sentence for the offence specified or involved in such finding:

Provided that no such substitution shall be made unless such finding could have been validly made by the Force Court on the charge and unless it appears that the Force Court must have been satisfied of the facts establishing the said offence.

(*2*) Where a sentence passed by a Force Court which has been confirmed, or which does not require confirmation, not being a sentence passed in pursuance of a new finding substituted under sub-section (*1*), is found for any reason to be invalid, the authority referred to in sub-section (*1*) may pass a valid sentence.

(*3*) The punishment awarded by a sentence passed under sub-section (*1*)or sub-section (*2*) shall not be higher in the scale of punishments than, or in excess of, the punishment awarded by, the sentence for which a new sentence is substituted under this section.

(*4*) Any finding substituted, or any sentence passed, under this sections hall, for the purposes of this Act and the rules, have effect as if it were a finding or sentence, as the case may be, of a Force Court.

131. Petition against order, finding or sentence of Force Court.–(*1*) Any person subject to this Act who considers himself aggrieved by any order passed by any Force Court may present a petition to the officer or authority empowered to confirm any finding or sentence of such Force Court, and the confirming authority may take such steps as may be considered necessary to satisfy itself as to the correctness, legality or propriety of the order passed or as to the regularity of any proceeding to which the order relates.

(*2*) Any person subject to this Act who considers himself aggrieved by a finding or sentence of any Force court which has been confirmed, may present a petition to the Central Government, the Director-General or any prescribed officer superior in command to the one who confirmed such finding or sentence, and the Central Government, the Director-General, or the prescribed officer, as the case may be, may pass such order thereon as it or he thinks fit.

132. Annulment of proceedings.–The Central Government, the Director- General or any prescribed officer may annul the proceedings of any Force Court on the ground that they are illegal or unjust.

CHAPTER X

EXECUTION OF SENTENCES, PARDONS, REMISSIONS, ETC.

133. Execution of sentence of death.–In executing a sentence of death, a Force Court shall, in its discretion direct that the offender shall suffer death by being hanged by the neck until he be dead, or shall suffer death by being shot to death.

134. Commencement of sentence of imprisonment.–Whenever any person is sentenced by a Force Court under this Act to imprisonment, the term of his sentence shall, whether it has been revised or not, be reckoned to commence on the day on which the original proceedings were signed by the presiding officer, or in the case of a Summary Force Court, by the Court:

Provided that if for any reason beyond the control of the commanding officer or superior officer, the sentence of imprisonment cannot be executed in full or in part, the convict shall be liable to undergo the whole or unexpired portion of sentence, as the case may be, when it becomes possible to carry out the same:

Provided further that the period of detention or confinement, if any, undergone by an accused person during the investigation, inquiry or trial of the case in which he is sentenced and before the date of which the original proceedings were signed shall be set off against the term of his sentence and the liability of such person to undergo imprisonment shall be restricted to the remainder, if any of the term of his sentence.

135. Execution of sentence of imprisonment.–(*1*) Whenever any sentence of imprisonment is passed under this Act by a Force Court or whenever any sentence of death is commuted to imprisonment, the confirming officer or in case of a Summary Force Court the officer holding the Court or such other officer as may be prescribed shall, save as otherwise provided in sub-sections (*3*) and (*4*), direct that the sentence shall be carried out by confinement in a civil prison.

(*2*) When a direction has been made under sub-section (*1*), the commanding officer of the person under sentence or such other officer as may be prescribed shall forward a warrant in the prescribed form to the officer in charge of the prison in which such person is to be confined and shall arrange for his despatch to such prison with the warrant.

(*3*) In the case of a sentence of imprisonment for a period not exceeding three months and passed under this Act by a Force Court, the appropriate officer under sub-section (*1*) may direct that the sentence shall be carried out by confinement in Force custody instead of in a civil prison.

(*4*) On active duty, a sentence of imprisonment may be carried out by confinement in such place as the officer not below the rank of Additional Deputy Inspector-General within whose command the person sentenced is serving or any prescribed officer may from time to time appoint.

136. Temporary custody of convict.–Where a sentence of imprisonment is directed to be undergone in a civil prison, the convict may be kept in Force custody or in any other fit place till such time as it is possible to send him to a civil prison.

137. Execution of sentence of imprisonment in special cases.–Whenever, in the opinion of an officer not below the rank of Additional Deputy Inspector-General within whose command the trial is held, any sentence or portion of a sentence of imprisonment cannot for special reasons conveniently be carried out in Force custody in accordance with the provisions of section 135, such officer may direct that such sentence or portion of sentence shall be carried out by confinement in any civil prison or other fit place.

138. Conveyance of prisoner from place to place.–A person under sentence of imprisonment may during his conveyance from place to place or when on board a ship, aircraft, or otherwise, be subjected to such restraint as is necessary for his safe conduct and removal.

139. Communication of certain orders to prison officers.–Whenever an order is duly made under this Act setting aside or varying any sentence, order or warrant under which any person is confined in a civil prison, a warrant in accordance with such order shall be forwarded by the officer making the order or his staff officer or such other person as may be prescribed, to the officer in charge of the prison in which such person is confined.

140. Recovery of fine.–When a sentence of fine is imposed by a Force Court under section 49, a copy of such sentence signed and certified by the confirming officer, or where no confirmation is required, by the officer holding the trial may be sent to any magistrate in India, and such magistrate shall thereupon cause the fine to be recovered in accordance with the provisions of the Code of Criminal Procedure, 1973 (2 of 1974), as if it were a sentence of fine imposed by such magistrate.

141. Informality or error in order or warrant.–Whenever any person is sentenced to imprisonment under this Act, and is undergoing the sentence in any place or manner in which he might be confined under a lawful order or warrant in pursuance of this Act, the confinement of such person shall not be deemed to be illegal only by reason of informality or error in, or as respects the order, warrant or other document, or the authority by which, or in pursuance whereof such person was brought into, or, is confined in any such place, and any such order, warrant or document may be amended accordingly.

142. Pardon and remission.–When any person subject to this Act has been convicted by a Force Court of any offence, the Central Government or the Director-General or, in the case of a sentence, which he could have confirmed or which did not require confirmation, an officer not below the rank of Additional Deputy Inspector-General within whose command such person at the time of conviction was serving, or the prescribed officer may,–

(*a*) either with or without conditions which the person sentenced accepts, pardon the person or remit the whole or any part of the punishments awarded; or

(*b*) mitigate the punishment awarded; or

(*c*) commute such punishment for any less punishment or punishments mentioned in this Act; or

(*d*) either with or without conditions which the person sentenced accepts, release the person on parole.

IndiaCode

143. Cancellation of conditional pardons, release on parole or remission.–(*1*) If any condition on which a person has been pardoned or released on parole or a punishment has been remitted is, in the opinion of the authority which granted the pardon, release or remission, not fulfilled, such authority may cancel the pardon, release or remission, and thereupon the sentence of the Court shall be carried into effect as if such pardon, release or remission had not been granted.

(*2*) A person whose sentence of imprisonment is carried into effect under the provisions of sub-section (*1*) shall undergo such imprisonment only for the unexpired portion of his sentence.

144.Suspension of sentence of imprisonment.–(*1*) Where a person subject to this Act is sentenced by a Force Court to imprisonment, the Central Government, the Director-General or any officer empowered to convene a General Force Court may suspend the sentence whether or not the offender has already been committed to prison or to Force custody.

(*2*) The authority or officer specified in sub-section (*1*) may, in the case of an offender so sentenced direct that until the orders of such authority or officer have been obtained, the offender shall not be committed to prison or to Force custody.

(*3*) The powers conferred by sub-sections (*1*) and (*2*) may be exercised in the case of any such sentence which has been confirmed, reduced or commuted.

145. Orders pending suspension of sentence.–(*1*) Where the sentence referred to in section 144 is imposed by a Force Court other than a Summary Force Court, the confirming officer may, when confirming the sentence, direct that the offender be not committed to prison or to Force custody until the orders of the authority or officer specified in section 144 have been obtained.

(*2*) Where a sentence of imprisonment is imposed by a Summary Force Court, the officer holding the trial may make the direction referred to in sub-section (*1*).

146. Release on suspension of sentence.–Where a sentence is suspended under section 144, the offender shall forthwith be released from custody.

147. Computation of period of sentence.–Any period during which the sentence is under suspension shall be reckoned as part of the term of such sentence.

148. Order after suspension of sentence.–The authority or officer specified in section 144 may, at any time while a sentence is suspended, order–

(*a*) that the offender be committed to undergo the unexpired portion of the sentence; or

(*b*) that the sentence be remitted.

149. Reconsideration of case after suspension of sentence.–(*1*) Wherea sentence has been suspended, the case may at any time, and shall at intervals of not more than four months, be reconsidered by the authority or officer not below the rank of an Additional Deputy Inspector-General duly authorised by the authority or officer specified in section 144.

(*2*) Where on such reconsideration by the officer so authorised, it appears to him that the conduct of offender since his conviction has been such as to justify a remission of sentence, he shall refer the matter to the authority or officer specified in section 144.

150. Fresh sentence after suspension.–Where an offender, while a sentence on him is suspended under this Act, is sentenced for any other offence, then–

(*a*) if the further sentence is also suspended under this Act, the two sentences shall run concurrently;

(*b*) If the further sentence is for a period of three months or more and is not suspended under this Act, the offender shall also be committed to prison or Force custody for the unexpired portion of the previous sentence, but both sentences shall run concurrently; and

(*c*) If the further sentence is for a period of less than three months and is not suspended under this Act, the offender shall be so committed on that sentence only, and the previous sentence shall, subject to any order which may be passed under section 148 or section 149, continue to be suspended.

151. Scope of power of suspension of sentence.–The powers conferred by sections 144 and 148 shall be in addition to, and not in derogation of, the power of mitigation, remission and commutation.

152. Effect of suspension and remission of sentence on dismissal.–(*1*) Where in addition to any other sentence the punishment of dismissal has been awarded by a Force Court, and such other sentence is suspended under section 144, then, such dismissal shall not take effect until so ordered by the authority or officer specified in section 144.

(*2*) If such other sentence is remitted under section 148, the punishment of dismissal shall also be remitted.

CHAPTER XI

MISCELLANEOUS

153. Powers and duties conferrable and imposable on members of the Force.–(*1*) The Central Government may, by general or special order published in the Official Gazette, direct that subject to such conditions and limitations as may be specified in the order, any member of the Force may exercise or discharge such of the powers or duties under any Central Act as may be specified in the said order, being the powers and duties which, in the opinion of the Central Government, an officer of the corresponding or lower rank is by such Central Act empowered to exercise or discharge for the said purposes.

(*2*) The Central Government may, by general or special order published in the Official Gazette, confer or impose, with the concurrence of the State Government concerned, any of the powers or duties which may be exercised or discharged under a State Act by a police officer upon a member of the Force who, in the opinion of the Central Government, holds a corresponding or higher rank.

(*3*) Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the order or both Houses agree that the order should not be made, the order shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that order.

IndiaCode

154. Protection for acts of members of the Force.–(*1*) In any suitor proceeding against any member of the Force for any act done by him in pursuance of a warrant or order of a competent authority, it shall be lawful for him to plead that such act was done by him under the authority of such warrant or order.

(*2*) Any such plea may be proved by the production of the warrant or order directing the act, and if it is so proved, the member of the Force shall thereupon be discharged from liability in respect of the act so done by him, notwithstanding any defect in the jurisdiction of the authority which issued such warrant or order.

(*3*) Notwithstanding anything contained in any other law for the time being in force, any legal proceeding (whether civil or criminal) which may lawfully be brought against any member of the Force for anything done or intended to be done under the powers conferred by, or in pursuance of any provision of this Act or the rules, shall be commenced within three months after the act complained of was committed and not otherwise, and notice in writing of such proceeding and of the cause thereof shall be given to the defendant or his superior officer at least one month before the commencement of such proceeding.

155. Power to make rules.–(*1*) The Central Government may, by notification, make rules for the purpose of carrying out the provisions of this Act.

(*2*) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for–

(*a*) the manner of constitution of the Force and conditions of service of its members under section 4;

(*b*) superintendence, direction and control of the Force under section 5;

(*c*) the persons to be enrolled to the Force, mode of enrolment and procedure thereof under section 6;

(*d*) the authority, to whom resignation to be submitted and the permission for withdrawal from duty to be obtained from, under section 8;

(*e*) the dismissal, removal and reduction in rank of persons under section 11;

(*f*) the authority and other matters required to be prescribed under section 13;

(*g*) the amount and the incidence of fine to be imposed under section 60;

(*h*) the manner and extent of deductions from pay and allowances and the authority there for under section 66;

(*i*) the procedure of investigation of an offence and the manner and period of detention of persons under section 70;

(*j*) the manner of making the report by the commanding officer in respect of delay in convening Force Court under section 71;

(*k*) the authority to appoint the court of inquiry and the manner of appointment thereof under section 74;

(*l*) the manner of convening Force Courts under section 76;

(*m*) the persons by whom an accused may be defended in a trial and appearance of such persons under section 91;

(*n*) the recruitment and conditions of service of the Judge Attorney- General, Deputy Judge Attorney-General, Additional Judge Attorney-General and Judge Attorney under section 95;

(*o*) the officer to annul proceedings of the Force Court under section 132; and

(*p*) any other matter which is to be, or may be, prescribed, or in respect of which provision is to be, or may be, made by the rules.

(*3*) Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or

IndiaCode

annulment shall be without prejudice to the validity of anything previously done under that rule.

156. Provisions as to existing Sashastra Seema Bal.–(*1*)The Sashastra Seema Bal in existence at the commencement of this Act shall be deemed to be the Force constituted under this Act.

(*2*) The members of the Sashastra Seema Bal in existence at the commencement of this Act shall be deemed to have been appointed or, as the case may be, enrolled as such under this Act.

(*3*) Anything done or any action taken before the commencement of this Act in relation to the constitution of the Sashastra Seema Bal referred to in sub-section (*1*), in relation to any person appointed or enrolled, as the case may be, thereto, shall be as valid and as effective in law as if such thing or action was done or taken under this Act:

Provided that nothing in this sub-section shall render any person guilty of any offence in respect of anything done or omitted to be done by him before the commencement of this Act.

———

IndiaCode